

24STCP03201 24STCP03201

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C833%2C07%2F22%2F2026

Source SHA-256: 8199b05fd1d92541902e65c1a5b7fd6157b426941f2c86c38367fb7d448b1512

Case Number: 24STCP03201 Hearing Date: July 22, 2026 Dept: 833

Andrea Alarcon Case No. 24STCP03201

Hearing:

July 22, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 City of Palmdale Judge:

Joseph Lipner

[Tentative] Order on

Motion for Attorneys Fees

Petitioner Andrea Alarcon

("Petitioner") moves for an award of attorneys' fees in the amount of \$331,663.50, as a result of prevailing in an action against Respondent The City of Palmdale ("Respondent").

The Court GRANTS the Motion for

Attorneys Fees, in the reduced amount of \$181,313. The Court also GRANTS the request for incurred costs of \$1,811.52.

BACKGROUND

Petitioner

is an elected member of Respondent's governing board – the Palmdale City

Council – and has served in that role since being elected in November 2022. (Alarcon Decl. ¶ 1.) In her elected office, Petitioner, and her colleagues on the Palmdale City Council, are responsible for oversight of the City Attorney, including the hiring and firing of the City Attorney. (Palmdale Mun. Code §§ 2.06.020; 2.06.030.) Moreover, Petitioner and her council colleagues are responsible for adopting an annual budget for the City of Palmdale, and are expressly empowered to “authorize” the City Attorney’s compensation. (Palmdale Mun. Code § 2.06.080; Palmdale City Charter Ch. 3.04.)

Petitioner

requested copies of the City Attorney’s invoices. The City Attorney refused to allow Petitioner access to the invoices. Petitioner filed a writ of mandate asserting two causes of action: 1) violation of the California Public Records Act; and (2) declaratory relief.

On

October 6, 2025, this Court issued its ruling and order, granting in part, and denying in part, Petitioner’s petition for writ of mandate. The order indicated the Court “will issue a writ of mandate directing the City to produce the billing invoices of Harper & Burns for the period of January 1, 2023, through March 22, 2024, for [] four [concluded] cases,” and that Respondent “may redact all billing narratives from the invoices but shall not redact the cumulative amounts of fees billed ...[,] the number of hours billed, the hourly rates charged, or the legal expenses incurred.” (October 6, 2025 Order, p. 8.)

LEGAL STANDARD

“If

the requester prevails in litigation filed pursuant to [the CPRA], the court shall award court costs and reasonable attorney’s fees to the requester.”² (Gov. Code § 7923.115(a).) Under the CPRA, an award of attorney’s fees to a prevailing plaintiff is mandatory. (Fontana Police Dept. v. Villegas-Banuelos (1999) 74 Cal.App.4th 1249, 1252.) A petitioner “prevails” within the meaning of the CPRA “when he or she files an action which results in defendant releasing a copy of a previously withheld document.” (Los Angeles Times v. Alameda Corridor Transp. Authority (2001) 88 Cal.App.4th 1381, 1391.)

DISCUSSION

A.

Petitioner was the prevailing party

The

Court finds that Petitioner was the prevailing party. In response to Petitioner's initial requests, Respondent insisted "no records will be provided." (Andrea Alarcon Decl. of March 28, 2025, ¶ 17, Ex. F.) Only after the Court issued its order on the petition for writ of mandate did Respondent send copies of the records. (Alarcon Decl. of May 4, 2026, ¶ 3.)

Since

Petitioner's case resulted in Respondent releasing a copy of a previously withheld document, Petitioner is the prevailing party. (Pacific Merchant Shipping Association v. Board of Pilot Commissioners etc. (2015) 242 Cal.App.4th 1043, 1053.)

Courts

might be justified in denying attorneys fees when documents are "minimal or insignificant." (Los Angeles Times v. Alameda Corridor Transp. Authority (2001) 88 Cal.App.4th 1381, 1391.) In general, Petitioner received substantive attorney billing information that the Respondent was unwilling to produce, which on its face appears significant. Moreover, Petitioner asserts that the production of the invoices revealed overbilling, inefficiency, and a lack of client-centric strategy in defending employment cases. (Alarcon Decl. of May 4, 2026, ¶ 5.) Based on the billing records, Petitioner was able to convince her colleagues to initiate a search for a new city attorney. (Alarcon Decl. of May 4, 2026, ¶ 7.) This indicates that the documents obtained in this action were not insignificant.

B.

Petitioner's lodestar

"The

determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....' [T]he lodestar is the basic fee for comparable legal services in the community...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) Generally, the reasonable hourly rate used for the

lodestar calculation is the rate prevailing in the community for similar work. (Center for Biological Diversity v. County of San Bernardino, (2010) 188 Cal.App.4th 603, 616.) In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc., (2016) 6 Cal.App.5th 426, 437.) “A trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended.” (Sweetwater Union High School Dist. v. Julian Union Elementary School Dist. (2019) 36 Cal.App.5th 970, 994.)

“The verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) The moving party also “can carry its burden of establishing its entitlement to attorney fees by submitting a declaration from counsel instead of billing records or invoices.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 487-488.) If the motion is supported by evidence, the opposing party must respond with specific evidence showing that the fees are unreasonable. (Premier Med. Mgmt. Sys. v. California Ins. Guarantee Ass’n (2008) 163 Cal.App.4th 550, 560-63.) The court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford, supra, at p. 395.)

1.

Reasonable Hourly Rates

Kevin

Shekman requests an hourly rate of \$985 per hour and Mary Hughes requests an hourly rate of \$945 per hour. (Shenkman Decl., ¶ 21.)

Based

on the Court’s knowledge and familiarity with the legal market, as well as the

experience, skill, and reputation of the attorney requesting fees, among other factors, the court finds that the requested hourly rates of over \$900 to be excessive in the context of this CPRA action. (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.) In Los Angeles County and the surrounding region, reasonable rates for CPRA litigation are generally lower than \$945-985 per hour and often range from approximately \$300 to \$650 per hour. This determination is based on the Court's experience, as well as the evidence submitted by Respondent. (Burns Decl., ¶¶ 6-7; DuPont Decl., ¶¶ 10-11.)

In determining the reasonable hourly rate, the Court has considered all evidence in the record. Neither declaration from Petitioner provides persuasive evidence about the reasonable hourly rate in Los Angeles or the surrounding region for CPRA litigation. Petitioner cites to the Laffey Matrix to justify the rates, but the Laffey Matrix only considers years an attorney has been out of law school. It does not consider the relevant market, comparable attorneys, or comparable work. Therefore, standing alone the Laffey Matrix does not provide sufficient information about the factors relevant to setting a reasonable hourly rate in this matter. Petitioner's counsel also argues that the listed rates are reasonable because of success on voting rights cases and school organization cases. These sort of cases are not directly comparable to this CPRA litigation.

Higher rates are possible for CPRA litigation depending on counsel's experience, the complexity of the case, whether the case was contested and went to trial, and other factors. Shenkman and Hughes have been members of the bar for 24 years but the Shenkman Declaration does not describe any past CPRA experience. (Shenkman Decl., ¶¶ 3-4.)

At the same time, the Court is aware that this petition required multiple rounds of briefing and involved unique CPRA issues such as assertion of the attorney-client privilege against a party within the privilege group, waiver of the attorney-client and work produce privileges for failure to assert those privileges in response to a CPRA request, the applicability of the attorney-client privilege to various portions of city attorney invoices, the detail required of a privilege log, and date on which the applicability of the attorney-client privilege is measured.

Accordingly,
the Court sets the hourly rate for Sherkman at \$750/hr and the hourly rate for
Mary Hughes at \$710/hr.

2.

Hours Worked

Petitioner

claims to have spent 340.3 hours on this case. Petitioner argues that the
novelty and complexity of the issues required 340.3 hours of work. Petitioner
has not sought compensation for tasks that took only a small amount of time or
were not necessary to the litigation. (Sherkman Decl., ¶¶ 19-20.)

The

verified time statements, attached to the declaration, are entitled to a
presumption of credibility, which extends to an attorney's professional
judgment as to whether time spent was reasonably necessary to the litigation. (Horsford
v. Board of Trustees of Cal. State Univ. (2005) 132 Cal.App.4th 359, 396.)

However,

the Court cuts 77.4 hours for work spent on the appeal. This appeal was denied
as untimely, and an untimely appeal is not reasonably necessary to the success
of the litigation. That is a reduction of 3 hours for Hughes and 74.4 hours for
Sherkman.

Petitioner's

counsel also spent at least 26.6 hours drafting the attorneys fees motion and
associated documents. The Court consider this amount of time not reasonable for
the task involved, especially when much of the content of declarations can be
copied and pasted, and much of the law on an attorneys fees motion does not
change from case to case. It is reasonable for Petitioner's counsel to have
spent 10 hours on this motion.

The

Court declines to cuts 19.9 hours for work done before Petitioner's counsel
actually drafted a CPRA request on March 21, 2024. Most of the work completed
before March 21, 2024 was research regarding Petitioner's right to access city
attorney invoices. The Court finds that this research was reasonably necessary
to Petitioner's counsel prosecuting this litigation.

That

leaves 246.3 hours, 161 hours for Shenkman and 85.3 hours for Hughes.

When

multiplied by the reasonable rates set above, the lodestar is \$181,313.

3.

Multiplier

A

trial court may adjust the lodestar fee upward or downward using a multiplier. (Ketchum v. Moses, (2001) 24 Cal.4th 1122, 1132.) Courts look to the following factors, among others, in determining whether a multiplier is appropriate: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award; (4) the fact that an award against the state would ultimately fall upon the taxpayers; (5) the fact that the attorneys in question received public and charitable funding for the purpose of bringing law suits of the character here involved; (6) the fact that the monies awarded would inure not to the individual benefit of the attorneys involved but the organizations by which they are employed...." (Serrano v. Priest (1977) 20 Cal.3d 25, 48.)

Petitioner

does not request a multiplier, and the Court will not grant a positive multiplier. Nor does this case appear to the Court appropriate for a negative multiplier as requested by Respondent.

C.

Costs

Petitioner reasonably

incurred costs of \$1,811.52 in court filing fees. (Shenkman Decl., ¶ 18.) Respondent has not challenged the requested costs. The Court grants the request for \$1,811.52 in costs.

CONCLUSION

The Court GRANTS the Motion for Attorneys Fees, in the reduced amount of \$181,313. The Court also GRANTS the request for incurred costs of \$1,811.52.

IT IS SO ORDERED.

Dated: July 22,
2026

Joseph
Lipner

Superior
Court Judge